



File No.: EXP202204043

RESOLUTION OF EXPIRATION OF PROCEEDINGS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: The Spanish Agency for Data Protection has become aware, through the SPANISH COMMISSION FOR THE FIGHT AGAINST DOPING IN SPORT (hereinafter CELAD), previously the SPANISH AGENCY FOR HEALTH PROTECTION IN SPORT (AEPSAD), of certain facts that could violate data protection legislation.

On April 1, 2022, the Director of the Spanish Agency for Data Protection urged the General Subdirectorate for Data Inspection (SGID) to initiate the preliminary investigation proceedings referred to in Article 67 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD) to investigate A.A.A. with NIF ***NIF.1 (hereinafter, the respondent) in relation to the following facts:

As a result of the complaint made by the SPANISH COMMISSION FOR THE FIGHT AGAINST DOPING IN SPORT (CELAD), (...) it is brought to the attention of this Agency that, on the occasion of the submission to CELAD of a claim for patrimonial liability by A.A.A., on behalf of B.B.B. (...).

Accompanying the documentation provided, the following has been attached:

- the recording of a video of the oral hearing held in the Summary Procedure ***PROCEDIMIENTO.1, of the Central Administrative Court No. 4 of Madrid, which arises from a sanctioning file followed against C.C.C., (...), which has no relation whatsoever to the represented party of the respondent, B.B.B., of the referred patrimonial liability file.

The recording provided contains data of third parties unrelated to the patrimonial liability procedure, in particular, the testimony of D.D.D., (...), without any authorization or consent from either the parties or the judicial body for its use outside the judicial procedure in which such recordings were generated.

- Likewise, the claim for patrimonial liability is also accompanied by emails containing conversations held between the Director of CELAD and the former Head of the Division of Advice and Reports, in which, in addition to revealing personal data of an athlete against whom CELAD opened a sanctioning administrative file for violation of anti-doping regulations, personal identifying and employment data of several CELAD employees, both civil servants and labor employees, as well as third parties who have carried out their professional activity in a specific department, are disclosed, without any justification for this dissemination or publicity, as there is no link with the claimant or with their claim.

In its complaint, CELAD states that A.A.A. obtained these emails in the context of the Preliminary Proceedings, opened by the complaint of their represented party against two CELAD employees in the Investigating Court No. 14 of Madrid.

It is added that there is no consent for their use by all the persons and authorities involved in the email sequence, nor does it relate to the claim filed.

In relation to the above, the need to analyze the implications regarding personal data protection and information security requires the opening of an investigation to clarify the reported facts and their authorship.

Therefore, the General Subdirectorate for Data Inspection is urged to initiate ex officio preliminary investigation proceedings aimed at verifying these facts and their authorship.

SECOND: On April 25, 2022, another document from CELAD was received in which facts are communicated that could imply a violation of data protection regulations.

In this document, it is stated that on March 30, 2022, CELAD received an extraordinary appeal for review against a resolution issued by CELAD, submitted by A.A.A., on behalf of E.E.E., in which the following documents are attached, among others:

- Annex I: document referred to as document No. 1, which is a writing through which the claimant party of said extraordinary appeal designates the respondent in this sanctioning file, A.A.A., as the legal representative.

- Annex II: document referred to as document No. 14, which is a recording of video and audio of an

oral hearing held in a Summary Procedure ***PROCEDIMIENTO.1, of the Central Administrative Court No. 4 of Madrid, which arises from the sanctioning file followed in CELAD ***PROCEDIMIENTO.2, against C.C.C. In this summary procedure, E.E.E. is not a party.

In this recording, unrelated to the extraordinary appeal for review, the interventions of the appearing parties, as well as the judicial authority, and D.D.D., (...) are recorded.

- Annex III: document referred to as document No. 15, which is a recording of video and audio held in the Summary Procedure ***PROCEDIMIENTO.3, of the Central Administrative Court No. 10 of Madrid, held on March 1, 2022.

This summary procedure arises from the Sanctioning File ***PROCEDIMIENTO.4, followed against F.F.F., represented in the sanctioning procedure and in the contentious-administrative jurisdiction by A.A.A.

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This recording is unrelated to the extraordinary appeal for review submitted by E.E.E.

Furthermore, personal identifying data of several external individuals who have carried out their activities on behalf of the Agency are revealed, without any justification for this dissemination, as there is no connection with the claimant or their claim.

- Annex V: document referred to as no. 10, consists of emails containing conversations held between the Director of the CELAD and the former Head of the Division of Advisory and Reports, where personal data of an athlete is collected, as well as identifying personal data of several employees of that Agency, and of external individuals who carried out their activities as workers therein, without any justification for this dissemination or publicity, as there is no connection with the claimant or their claim.

THIRD: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGGD, being aware of the following points:

From the documentation in the preliminary proceedings along with the documentation in the writings of the CELAD, it is observed that:

In the CELAD writing dated December 28, 2021, which is submitted along with the complaint presented to this Agency on February 28, 2022, it is stated that the reported party, when presenting a document of patrimonial liability before the same as a legal representative, would have provided as means of proof:

- the recording of a video of the oral hearing held in the Summary Procedure ***PROCEDIMIENTO.1, of the Central Administrative Court No. 4 of Madrid, which arises from a sanctioning file ***PROCEDIMIENTO.2, followed against C.C.C., another athlete who has no relation whatsoever with the representative of the reported party, B.B.B., (referring to the patrimonial liability file.)

The recording submitted contains data of third parties unrelated to the patrimonial liability procedure, in particular, the testimony of D.D.D., an employee of the CELAD, without any authorization or consent from either the parties or the judicial body for its use outside the judicial procedure in which such recordings were generated.

- the emails with the conversations held by the Director of the CELAD and a former Head of the Division of Advisory and Reports, which would have...

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obtained by A.A.A. in his capacity as legal representative within the framework of the Preliminary Proceedings ***PROCEDURE.5.

It is added that there is no record of consent for its use by all the persons and authorities involved in the sequence of emails, nor does it relate to the claim filed.

In relation to these emails, the document from CELAD dated December 28, 2021, which accompanies the complaint filed with this Agency on February 28, 2022, reveals that they would not be related to the claim for patrimonial liability filed, nor would the data and information disclosed have utility or justification within the framework of the patrimonial claim procedure in which they are being asserted. In the document submitted by CELAD on April 25, 2022, to this Agency, it is stated that A.A.A., acting as the legal representative of E.E.E. (which is not the same entity that motivated the previously filed patrimonial claim), would have also filed an extraordinary appeal for review, and would have provided as evidence:

- the video and audio recording from the Summary Procedure ***PROCEDURE.1 of the Central Administrative Court No. 4 of Madrid, which is a consequence of the sanctioning file AEPSAD ***PROCEDURE.2, followed against C.C.C., (...), E.E.E. (the person who filed the extraordinary appeal for review). At this point, it is also indicated that this Summary Procedure would not relate to the claimant or their legal representative (the accused party in this sanctioning procedure).

- the video and audio recording of the oral hearing held in the Summary Procedure ***PROCEDURE.3 of the Central Administrative Court No. 10 of Madrid, held on March 1, 2022.

This summary procedure arises from the Sanctioning File ***PROCEDURE.4, followed against F.F.F., represented in the sanctioning procedure and in the contentious-administrative jurisdiction by A.A.A.

This recording is unrelated to the extraordinary appeal for review filed by E.E.E.

Furthermore, identifying personal data of several external individuals who have carried out their activities on behalf of the Agency is disclosed, without any justification for this dissemination as there is no link to the claimant or their claim.

- the emails containing conversations held by the Director of CELAD and a former Head of the Division of Advice and Reports would have been obtained by the accused party in their capacity as legal representative within the framework of the Preliminary Proceedings ***PROCEDURE.5.

In relation to these emails, the document from CELAD states, in its complaint dated February 28, 2022, that they would not be related to the claim for patrimonial liability filed, nor would the data and information disclosed have any relevance.

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The information revealed would have utility or justification within the extraordinary review appeal in which it would be asserted.

On 30/12/2022, a notification of a request for information was made, in which the responding party was asked to submit, within ten working days:

1. Bases for the legitimacy of the use of recordings of the hearings of the abbreviated procedures followed by the Central Court of Administrative Litigation No. 4 and 10 and for the use of the sequence of emails outside the procedures in which they were obtained.
2. Documentation justifying the authorization from the judicial authority or from the parties appearing in the recordings or in the sequence of emails that authorizes their use in proceedings different from those in which they were obtained, if applicable.
3. Documentation justifying the processes in which the recordings and the sequence of emails were obtained.
4. Any other information deemed appropriate.

On 13/01/2023, the written response to the aforementioned request was entered into the General Registry of the Agency, in which the accused party states:

"In relation to the inspection proceedings carried out regarding the use of three documentary means of evidence in various judicial proceedings initiated at the request of several of my clients: P.A.

***PROCEDIMIENTO.62 (liability of the Administration), processed by the Central Court of Administrative Litigation No. 11; D.P. ***PROCEDIMIENTO.5 (forgery in a public document),

processed by the Court of Instruction No. 14 of Madrid; and D.P. ***PROCEDIMIENTO.7 (administrative prevarication and breach of trust in the custody of a public document), Court of Instruction No. 40 of Madrid," it states that:

- The procedural treatment given to these documentary means of evidence, which contribute to substantiating the facts reported by their defendants, is documented in the aforementioned judicial proceedings.
- Their actions have been and are in the mere and strict exercise of the legal profession and in the confidential attorney-client relationship, limiting themselves, as in any other judicial case, to attempting to document the facts reported by my clients.
- The legitimacy for the submission of these documentary means of evidence to the competent authorities lies, ultimately, in the right to defense, given that all these amateur athletes have been subjected to identical sanctioning actions by the director of CELAD and at the request of the head of the doping control department, which are currently under review and investigation by various judicial authorities at the request of my clients, both by the administrative litigation jurisdiction and by the criminal jurisdiction.

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- No dissemination or advertising of personal or employment data of CELAD personnel has been carried out, with the use of the aforementioned documentary means of proof being merely procedural, directed exclusively to the competent administrative and judicial authorities for the investigation of the reported facts.
- It states that its actions are subject to professional secrecy and are limited to the defense of its clients in the indicated judicial proceedings. It indicates that all cases would have been submitted in their entirety, without modifications or alterations, as must occur with any evidentiary means submitted to a judicial proceeding, and in order for the administrative and judicial authorities to assess these means of proof in their entirety.
- It asserts that these means of proof, as well as any control over their validity, completeness, or integrity, have been available to the competent judicial authorities since 2020, while the lawyers must maintain the due professional secrecy.

On January 27, 2023, a second request for information was notified to the responding party, with the response received by this Agency on February 6, 2023, in order to clarify the following issues:

1.- a) Regarding the bases of legitimacy for the use of the recordings of the hearings, and the sequence of emails outside the proceedings for which they were obtained, the responding party states that the use of such documentation is based on the right of defense and the effective judicial protection of the persons it represents, insofar as they would contribute to substantiating the alleged irregularities reported by them.

It also indicates that the balancing between the right of defense and effective judicial protection, and the possible personal data of CELAD personnel cannot be disproportionately limited. It adds that these means of proof have not been used for any purpose unrelated to the defense of the persons it represents in the proceedings indicated by this Agency, for purposes of reporting, nor have they been publicly disclosed, but rather have been used so that the competent authorities could verify the reported facts.

1.b) In relation to the documentation justifying that it has the authorization of the judicial authority or of the parties appearing in the recordings, as well as of the persons appearing in the sequence of emails for their use outside the proceedings in which they were obtained, the responding party has attached the following documentation:

- as document No. 1, it would have attached documentation justifying its status as defender/co-defender of the individuals involved in ***PROCEDURE.8; ***PROCEDURE.2; ***PROCEDURE.4.

1.c) In relation to the supporting documentation of the processes in which the recordings and the

sequence of emails were obtained, the responding party...

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It is stated that the recordings and the sequence of emails would have been obtained as the attorney for the individuals he represents. The procedures would be:

PA ***PROCEDURE.1, held at the request of the person being investigated
***PROCEDURE.2

PA ***PROCEDURE.3, held at the request of the person being investigated
***PROCEDURE.4

DP ***PROCEDURE.5, processed at the request of the person being investigated

***PROCEDURE.8, through a complaint in which he was expressly designated, providing document No. 2 to substantiate this.

2.a) Regarding the issue of whether the video and audio recording in which CELAD personnel participated in PA ***PROCEDURE.1 was obtained as the procedural representative of any of the parties in the hearing, or if it was provided by personnel who participated in the hearing or by the judicial body that recorded the hearing, or if it was provided by a third party, the responding party states that this recording would have been obtained in his capacity as co-defender of the person being investigated in ***PROCEDURE.2.

2.b) Regarding whether the responding party had the express authorization of the CELAD personnel participating in the video and audio recording of the oral hearing of PA ***PROCEDURE.1 for its use outside the judicial procedure in which it was made, the responding party states that he would not have their authorization, as the responding party is not their legal representative, but rather the legal representative of the person who filed the complaint.

2.c) Regarding whether the responding party would have informed the CELAD personnel who were recorded in the oral hearing of PA ***PROCEDURE.1 about the use of their data outside of that judicial procedure, indicating to whom he informed, what information was provided, the date, and what means were used to provide it, the responding party has stated that such information would have been produced in relation to the procedure DP ***PROCEDURE.5 and through the representation of the CELAD person who testified in the oral hearing of PA ***PROCEDURE.1, in their procedural capacity as an investigated party. He adds that no personal data that has been used illegitimately appears in the recording of this hearing.

2.d) In relation to the issue of whether he has the authorization of the judicial body in which the oral hearing of PA ***PROCEDURE.1 was recorded for its use outside the judicial process in which that recording was made, the responding party has stated that he would have the authorization of the person being investigated in ***PROCEDURE.2, in his capacity as co-defender.

2.e) Regarding whether he would have informed the CELAD personnel appearing in the sequence of emails about the use of the same outside the judicial procedure in which they were obtained, the responding party states that these individuals would be informed since they are being investigated in respective investigation procedures and/or are witnesses in the same, having the corresponding authorization for the indicated procedural purposes of the complaint.

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2.f) Regarding whether the responding party has the express authorization of the personnel mentioned in the sequence of emails for their use outside the judicial procedure in which they were obtained, the responding party states that “the individuals from CELAD who appear in the sequence of emails are under investigation in respective judicial proceedings initiated at the request of my defendants and/or are witnesses in the same, and that this attorney, in that capacity, has not utilized them outside the

judicial proceedings indicated by the AEPD.”

In the preliminary proceedings phase, it was also requested that they inform about the following issues:

a. Whether the video and audio recording of external personnel who have carried out their activities on behalf of the Agency, who testified in the oral hearing held in the Summary Procedure

***PROCEDIMIENTO.3 of the Central Administrative Court No. 10 of Madrid, held on ***FECHA.1, was obtained by participating as legal representation of any of the parties in the hearing, or if it was provided by the personnel who participated in the hearing, or by the judicial body that recorded the hearing, or by a third party.

b. Whether they have or do not have the express authorization of that external personnel appearing in the video and audio recording of the oral hearing held in the Summary Procedure

***PROCEDIMIENTO.3 of the Central Administrative Court No. 10 of Madrid, held on ***FECHA.1 for its use outside the judicial procedure in which such recordings were generated.

c. Whether they have informed the personnel appearing in the video and audio recording of the oral hearing held in the Summary Procedure ***PROCEDIMIENTO.3 of the Central Administrative Court No. 10 of Madrid, held on ***FECHA.1 about the use of their data outside that judicial procedure. They must indicate to whom they informed, what information was provided, on what date, and by what means it was provided.

In this regard, the responding party has stated that, concerning the requests for information contained in sections 2.g), h), and i) of this request, they respond that: “Unless there is an unintentional error, no person from CELAD and no official from CELAD testified in the oral hearing of the P.A.

***PROCEDIMIENTO.3, in which the Judge, a State Attorney representing the Administrative Court of Sport, and this attorney representing the subject ***PROCEDIMIENTO.4 participated.”

Furthermore, in their response to this second request, they include the following statements:

“That within these inspection proceedings, consisting of two requests regarding the use of evidence in judicial proceedings initiated against C/ Jorge Juan, 6

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The two highest officials of the CELAD, on behalf of their represented parties, have not been informed of how the AEPD became aware of their intervention as lawyers in the aforementioned judicial proceedings, nor of the possible infringement committed by this lawyer. Therefore, the information provided is blind, with the intention of collaborating with the AEPD and, at the same time, fulfilling their ethical obligations as intervening lawyers, in defense of their represented parties, in the judicial proceedings indicated by the AEPD.

In this regard, it should be noted that in the information requests, it is indicated that the investigation actions have been initiated due to the use in two administrative proceedings (claim for patrimonial liability and extraordinary appeal for review) presented by the defendant party before the CELAD, which the defendant party itself qualifies as documentary means of evidence (recordings of court hearings and email chain), without any record of having the consent of the participants in the recordings or in the email chain, nor of having the authorization of the judicial authority where the recordings were made and the email chain was obtained for use outside of those judicial proceedings. The defendant party adds that: “It could even be the case that the director of the CELAD, by himself or through a subordinate official, is trying to instrumentalize the AEPD to obtain information related to evidentiary means and judicial proceedings in which he himself is being investigated at the request of my represented parties, denouncing for this purpose the lawyer who defends the interests of the affected parties.

Furthermore, it seems that the CELAD is trying to obtain information unrelated to the purposes assigned to the AEPD through this Agency, with the apparent aim, which would be inadmissible and this AEPD cannot contribute to, of retaliating against individuals, currently known as informants under European regulations, who before their departure from the CELAD would have witnessed how their director processed various sanctioning procedures against amateur-level athletes. (...)”

FOURTH: On March 23, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the defendant party, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.b) of the GDPR, classified in Article 83.5 of the GDPR.

FIFTH: On April 13, 2023, a written submission from A.A.A. was received by this Agency, in due time and form, in which he presents allegations and after stating what is pertinent to his rights, concludes by requesting that the present sanctioning file be archived.

SIXTH: On April 13, 2023, the defendant party submitted a written request for a copy of the file, which was granted, and on April 17, 2023, the copy of the file was sent, with delivery recorded on April 18, 2023.

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SEVENTH: On October 9, 2023, a resolution proposal was made, proposing that the Director of the Spanish Agency for Data Protection sanction A.A.A., with NIF ***NIF.1, for the alleged infringement of Article 5.1.b) of the GDPR, classified under Article 83.5 of the GDPR, with a fine of €8,000 (eight thousand euros).

This resolution proposal, which was notified to A.A.A. in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), was received on October 18, 2023, as evidenced by the acknowledgment of receipt in the file.

EIGHTH: On November 2, 2023, this Agency received, in due time and form, a written statement of allegations regarding the resolution proposal, and after stating what was pertinent to its rights, it concluded by requesting that the sanctioning procedure initiated against A.A.A. be archived. It also stated that the copy of the file did not include the recordings on which the filed complaints were based.

NINTH: On November 15, 2023, the requested documentation in the file was sent to the accused party, granting a period of 5 days to present allegations. The file contains an attempt at notification on November 16, 2023, which states "does not accept," and another attempt at notification on November 20, 2023, which states "does not want it, will not accept it."

Along with this shipment, a letter was sent with the key to access the documentation sent, which was confirmed delivered on November 24, 2023.

TENTH: On November 27, 2023, a letter from the accused party was received in this Agency, in which it claims the existence of defenselessness susceptible to constitutional protection, basing it on the fact that the initial shipment of the file copy was incomplete and that, subsequently, when the acting administration sent a new copy of the file, which included the aforementioned documentation, no new hearing period was granted to allege what was pertinent to its rights.

ELEVENTH: On November 28, 2023, a new letter from the accused party was received in this Agency, in which it requests a prior appointment for access to the physical support sent by this Agency.

TWELFTH: On December 1, 2023, a letter granting said prior appointment was sent to the accused party.

This letter was received by the accused party on December 11, 2023.

THIRTEENTH: On December 15, 2023, a letter from the accused party was received in which it reiterates its allegations regarding the existence of defenselessness susceptible to constitutional protection, concerning the fact that, in the letter sent by this Agency on December 1, 2023, no new period was granted to present allegations. Thus, it considers that they could not be used as evidence, and requests that the document be purged, and, in a subsidiary manner, requests that the corresponding period for allegations regarding this specific evidence be granted.

LEGAL GROUNDS

I

Competence and applicable regulations

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Procedures in case of possible violation of data protection regulations

Article 64 of the LOPDGDD establishes the following regarding procedures in case of possible violation of data protection regulations:

"(...)

2. When the procedure aims to determine the possible existence of an infringement of the provisions of Regulation (EU) 2016/679 and this organic law, it shall be initiated by an initiation agreement adopted on its own initiative or as a result of a complaint.

If the procedure is based on a complaint filed with the Spanish Agency for Data Protection, this Agency shall first decide on its admission for processing, in accordance with the provisions of Article 65 of this organic law.

When the rules established in Article 60 of Regulation (EU) 2016/679 are applicable, the procedure shall be initiated by the adoption of the draft initiation agreement for the sanctioning procedure, of which formal notice shall be given to the interested party for the purposes provided for in Article 75 of this organic law.

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Once the claim has been admitted for processing, as well as in cases where the Spanish Agency for Data Protection acts on its own initiative, prior to the initiation agreement, there may be a phase of preliminary investigative actions, which shall be governed by the provisions of Article 67 of this organic law.

The procedure shall have a maximum duration of nine months from the date of the initiation agreement or, where applicable, from the draft initiation agreement. Once this period has elapsed, it shall expire, and consequently, the proceedings shall be archived.

3. The procedure may also be processed as a result of communication to the Spanish Agency for Data Protection by the supervisory authority of another Member State of the European Union regarding the claim made before it, when the Spanish Agency for Data Protection has the status of the main supervisory authority for processing a procedure in accordance with the provisions of Articles 56 and 60 of Regulation (EU) 2016/679. In this case, the provisions of paragraph 1 and the first, third, fourth, and fifth paragraphs of paragraph 2 shall apply.

4. The processing deadlines established in this article, as well as those for admission to processing regulated by Article 65.5 and the duration of the preliminary investigative actions provided for in Article 67.2, shall be automatically suspended when information, consultation, request for assistance, or mandatory pronouncement from an organ or body of the European Union or one or more supervisory authorities of the Member States must be obtained in accordance with the provisions of Regulation (EU) 2016/679, for the time that elapses between the request and the notification of the pronouncement to the Spanish Agency for Data Protection.

According to the provisions of the transcribed article, the sanctioning procedure shall be deemed expired if, after more than nine months from the date of the initiation agreement or, where applicable, from the draft initiation agreement, the resolution of the sanctioning procedure has not been issued and notified.

In the present case, the initiation agreement was signed on March 23, 2023. The nine-month maximum duration of the sanctioning procedure would end on December 23, 2023, and currently, the procedure is still pending completion, so it must be declared expired.

III

Prescription of the infringement

On the other hand, Article 95.3 of the aforementioned LPACAP states:

“The expiration shall not, by itself, produce the prescription of actions by the individual or the Administration, but expired procedures shall not interrupt the prescription period.

In cases where it is possible to initiate a new procedure due to the absence of prescription, the acts and proceedings whose content would have remained the same had the expiration not occurred may be incorporated into it. In any case, in the new procedure, the procedures for allegations, proposal of evidence, and hearing of the interested party must be completed.”

Therefore, in accordance with the aforementioned, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO DECLARE the EXPIRATION of the present sanctioning procedure, with the number PS/00069/2023.

SECOND: TO NOTIFY this Resolution to A.A.A.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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